AGENDA ITEM COVER SHEET

Meeting Date:	September 17th 24th, 2026
Initiated by:	Mayor & Council
Requesting Department:	Building Risk Management
Presenter(s):	Roger P. Willis, Chief Building Official

Public Hearing:
Consider Ordinance Amendment

ITEM TYPE	
X Ordinance Amendment – Data Center	Presentation / Recognition
Resolution	Announcement / Notice
Proclamation	Information

EXECUTIVE SUMMARY

This item is for Mayor and Council to consider adopting an ordinance amendment providing for the approval and regulation of Data Centers, Research and Development Centers, and Substations.

The Public Hearing has been advertised as required.

The Planning Commission's recommendation is to approve the ordinance amendment.

BACKGROUND

The current code of ordinances does not directly address Data Centers, Research and Development Facilities or Substations. The amendment will provide for approval and regulations.

FISCAL & POLICY IMPLICATIONS

Options	Results
Mayor & Council approves the ordinance amendment.	The Ordinance Amendment will be added to the Code of Ordinances.
Mayor & Council does not approve ordinance amendment.	The Ordinance Amendment will not be added to the Code of Ordinances.

ACTION REQUESTED

Approval Recommended:	
Approval Recommended:	Planning Commission

ATTACHMENTS

Ordinance Amendment	

ORDINANCE NO. 2026-_____

AN ORDINANCE AMENDING THE ZONING ORDINANCE OF THE CITY OF AMERICUS PROVIDING FOR THE APPROVAL AND REGULATION OF DATA CENTERS, RESEARCH AND DEVELOPMENT FACILITIES, AND SUBSTATIONS; PROVIDING FOR CERTAIN CONDITIONS FOR DEVELOPMENT; REPEALING ALL ORDINANCES IN CONFLICT HEREWITH; AND FOR OTHER PURPOSES.

WHEREAS, the City of Americus has adopted a Zoning Ordinance to provide for the orderly growth of the City; and

WHEREAS, the Zoning Ordinance protects the health, safety, and welfare of the citizens of the community; and

WHEREAS, the current Zoning Ordinance contains no provision for the location and regulation of data centers; and

WHEREAS, it is in the best interest of the community to provide regulations for data centers and associated research and development facilities and substations in the event such facility should elect to locate within the City of Americus.

NOW, THEREFORE, BE IT ORDAINED that the Zoning Ordinance of the City of Americus be amended as follows:

Section 1. Section 94-1 of the Zoning Ordinance of the City of Americus is amended by adding the following definitions:

Data center. A facility that houses computing and networking equipment, along with storage and management systems, to support the storage, processing, and distribution of digital data and applications. A data center typically features high-performance servers, storage arrays, networking equipment, cooling systems and power backup solutions to ensure uninterrupted operation. Server rooms or similar IT operations that are subordinate to a primary use are not included in this definition.

Research and development facilities. Facilities that investigate, design, test, and refine new or improved technologies. They involve systematic study and experimentation to create innovative products, enhance existing solutions, or discover new methods and materials. Engineering, healthcare, information technology, and manufacturing users use these facilities.

Substation. An electric facility system facility that converts higher voltages within or separate from a data center to generate sufficient power at maximum efficiency. Can operate independently for a dedicated site once directly connected to a transmission line.

Section 2. Section 94-159 of the Zoning Ordinance is by adding a new paragraphs b, c, and d as follows:

b. Within the Industrial District a D-C Data Center District is established to provide for the development of data centers, research and development facilities, and associated accessory uses only. This district shall provide areas specifically suited for data processing, storage, and technology infrastructure facilities of varying scales, from small, single building operations to large multi-building campus development. Such uses typically require access to electrical and communications utilities, enhanced cooling systems, and secure environments and may generate visual noise or utility impacts that distinguish them from conventional industrial activity. Within the D-C District, the following uses shall be permitted by special approval of the Mayor and Council.

(1) Data Center.
(2) Research and Development Facilities.
(3) Substations.

c. *Accessory uses.*

Accessory uses in the D-C District shall be allowed when necessary as follows:

(1) Office, storage, power supply and other such uses including utilities and battery energy storage systems normally auxiliary to the permitted principal use.
(2) Off-street parking and parking garages.
(3) Security facilities and structures.
(4) Employee gym, health spa, yoga studio.
(5) Daycare for employees only.
(6) Medical office for employees only.
(7) Cafeteria for employees only.
(8) Solar energy systems.
(9) Public or private transit facilities.
(10) Temporary construction yards, temporary construction trailers, and/or temporary concrete batch production that is part of the construction of the site. These temporary uses shall be removed upon completion of construction.
(11) Minor utilities subject to the requirements of Chapter 90 of the City of Americus Code.
(12) Substations.

d. New development provided for in the D-C District shall be subject to the following conditions:

(1) *Sound.*

i. Facilities may not emit noise that exceeds 55 decibels (db) measured at the exterior property line. With an application for rezoning, a sound study of the proposed property shall be submitted showing ambient noise levels at the exterior property line prepared to industry standards. If noise levels exceed the allowable threshold, the developer or property owner shall implement mitigation measures including, but not limited to acoustically treated enclosures for generators, colling systems, and other operations

equipment. All mitigation measures shall be designed to attune sound impacts on adjacent property which can be achieved through directing sound upward or other methods.

ii. All facilities will adhere to nuisance requirements related to noise as found in Article IV of Chapter 62 of the City Code of the City of Americus.

iii. Prior to the issuance of a Certificate of Occupancy for each building and with all systems functioning, a sound study showing compliance with this section shall be provided to City of Americus. Said sound study shall follow industry standards.

(2) *Generators.* All generators shall be located away from any adjacent property zoned for residential use, agricultural use, or containing ground floor residential use, located to the interior of a site or proposed building complex to the most practical extent possible, and shall not be placed within a buffer or building setback. Except for generator testing, maintenance, or commissioning activities, generator use is limited to backup/ emergency use only. Testing shall be conducted in a manner that minimizes noise, vibration, is within allowable sound limits as noted by this section and minimizes any traffic impacts on adjacent property.

(3) *Lighting.* All exterior lighting shall comply with applicable City and State regulations concerning illumination levels, shielding requirements, and fixture specifications. Such compliance shall include, but not limited to, the following standards:

i. All lighting shall be full cut off, which prohibits any light vertically projecting and shall be directed away from any adjacent residential or agricultural property.

ii. Any accent or architectural lighting shall be recessed and directed downward onto the illuminated object or area.

iii. Any safety or utility structure lighting is exempt from these regulations. However, any strobe lighting utilized at night is limited to red.

iv. Construction lighting is permitted on a temporary basis but shall be shielded to prevent glare and light spillover onto adjacent property. Lighting will be off during non-construction hours.

v. A photometric and lighting plan shall be required and reviewed during building plan review for compliance with this section.

(4) *Fencing.* A fence or freestanding wall that is closer to a property line than the front, side, or rear principal building setback line may not exceed 12 feet in height and shall have no barbed or razor wire. All fencing shall be black coated or painted vinyl or metal. Slats shall be limited to vertical placement only.

(5) *Buffers.*

i. A minimum 250-foot-wide natural buffer shall be required along all property lines making up the exterior boundaries of the development, including all road frontages. However, along highway frontage only, the buffer may be reduced to 50 feet but shall remain undisturbed along that frontage except that any required

utility crossings may be permitted within that buffer if they cross in as horizontal a manner as possible.

ii. Where adjacent to property zoned Industrial or a planned district that includes data centers, no buffer shall be required along that shared property line.

iii. Where adjacent to a property zoned for residential use, agricultural use, or with ground level residential, a minimum 500-foot-wide natural buffer shall be required.

iv. If a planted berm that provides a minimum visual screen that blocks the line of sight measured at the highest point at adjacent property lines and roads to the highest point on proposed structures in the development is proposed within the buffer along adjacent property or road frontages, the buffer may be reduced to 250 feet where adjacent to a property zoned for residential use, agricultural use, or with ground level residential and 125 feet where adjacent to other property or road frontages, no reduction in the buffer by use of a berm is permitted along the Interstate Highway.

v. If a reduction is proposed, a visual survey showing line of sight to the highest point on proposed structures in the development and at adjacent property lines and roads shall be provided for review by City of Americus during the rezoning process. Also provided shall be a study showing visuals and sight lines utilizing natural buffers as noted in sections i. and ii. of this section. The City of Americus Chief Building Inspector or designee shall determine if the provided information warrants a reduction in the buffer and provide their determination to the applicant prior to issuance of a land disturbance permit.

vi. Any berm utilized shall not be constructed closer than 25 feet from any adjacent property line or road frontage and any stormwater runoff from said berm shall be directed away from adjacent properties.

vii. All required buffers shall remain undisturbed to the maximum extent practicable, except for necessary access points and utility crossings which shall cross the buffer in as horizontal a manner as feasible in the case of a reduction in the buffer due to the use of a planted berm disturbance for construction of the berm is permitted as approved during the land disturbance permit process.

viii. Where existing vegetation is insufficient to provide effective screening or is disturbed, including installation of berms, it shall be planted to a condition that provides screening per this Ordinance.

(6) *Parking.* There are no established minimum or maximum number of off-street parking spaces required. The number of spaces required shall be determined based upon the number of employees associated with the actual use of the property and determined in conjunction with site plan review.

(7) *Mechanical equipment.* Property owners shall screen mechanical equipment, whether roof or ground mounted, visible to adjacent property or roads using

opaque fences or walls. Mechanical equipment includes, but is not limited to, meter boxes, utility conduits, HVAC equipment, vent and exhaust pipes, and colling towers. Where air flow is desired, perforated brick walls and other methods may be considered. Any dumpster or trash enclosure shall follow the requirements of Chapter 90.

(8) *Solar energy systems.* When ground mounted, solar energy systems shall be screened with a minimum structural buffer of 20 feet meeting the requirements of the City of Americus Solar Electrical System Ordinance. If roof mounted, the solar energy system shall be careened to not be visible from any adjoining property or public street. The method of screening shall be determined at building plan review.

(9) *Landscaping and tree protection.* When developed as a campus, alternative methods of meeting buffer requirements, such as utilizing basal area per acre, may be utilized in collaboration with the City of Americus. Said methods shall be determined during the plan review for the campus.

(10) *Building design.* All buildings on the site shall be limited in their exterior color or finish to earth tones, such as beiges, tans, greens, browns, and similar on all exterior elevations. The City of Americus Chief Code Enforcement Officer shall review these requirements during the building permit plan review process for compliance with this section.

(11) *Substations.* For the purposes of this section, a substation shall be screened so as not to be visible at ground level from any adjoining property or public street. The method of screening shall be determined at site plan review but shall meet the requirements of this Ordinance dependent on which type of screening is determined. No storage of vehicles or materials shall be permitted within the substation area.

(12) *Utilities.* Any upgrades required to City of Americus owned utilities shall be the sole responsibility of the applicant.

(13) *Environmental regulations.* The development shall meet all local, state, and federal requirements in regard to applicable environmental regulations at the time of construction.

(14) *Electrical utility provider.* Prior to issuance of a land disturbance permit or building permit, whichever occurs sooner, for the site, a letter from the utility provider shall be submitted to the City of Americus Planning verifying that the owner, operator, or developer is in compliance with all policies, procedures, and guidelines established by the provider.

(15) *Cessation of operations.*

i. Upon permanent cessation of operation of the primary use on the site, which is defined as zero electrical load to the primary use only for 90 consecutive days or a total of 180 days over a 365-day period, whichever occurs first, the owner shall notice City of Americus within 30 days of such occurrence. If the cessation of operation is caused by an Act of God, then repair or removal shall commence within 180 days.

ii. Within 12 months of the date of the notification to City of Americus, all structures on the site shall be demolished or removed to grade

and the site restored to agricultural viability. Soil tests on the site shall be performed and provided to City of Americus and native grasses or crops shall be replanted per USDA guidelines.

iii. The Mayor and City Council may at its sole discretion, approve an agreement to extend the timeline for compliance with this section for no more than 90 days.

SO ORDAINED, this 24th day of October, 2026.

CITY OF AMERICUS

By: _____
Mayor, Travis Rush

Attest: _____
Deputy Clerk,
Laquithia Leverette